



LONGMAN LAW SERIES

Property Law: Cases and Materials

SIXTH EDITION

Roger J. Smith

Property Law: Cases and Materials

Property Law

Cases and Materials

Sixth Edition

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Preface

The years since the previous edition have seen a steady stream of cases and these have been duly incorporated in this new edition. Two areas stand out. Unsurprisingly, human rights cases have continued to flow. Particular mention may be made of *Malik v Fassenfelt* and *McDonald v McDonald* on the horizontal effect of Article 8 (respect for home, etc.) and *Sims v Dacorum BC* (Supreme Court) on the termination of joint periodic tenancies. However, it is registration of title that has seen the most interesting developments. Leaving aside the perennially litigated area of overriding interests (on which, see *Chaudhary v Yavuz*), forgery has provided the basis for much modern analysis. This was investigated in *Fitzwilliam v Richall Holdings Services Ltd* and *Swift 1st Ltd v Chief Land Registrar*, the latter case also dealing with indemnity. Whether rectification can affect successors in title (to the proprietor involved in the ‘mistake’ triggering rectification) has attracted much attention in the past few years. We now have a full and authoritative Court of Appeal analysis in *Gold Harp Properties Ltd v Macleod*.

Although there have been no cases on the family home of the importance of *Stack v Dowden* and *Jones v Kernott*, there has been some guidance as to how the post-*Stack* principles operate. This chapter has been substantially re-ordered and rewritten, adopting the structure in the eighth edition of *Property Law*.

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Text

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[1967] Ch 487; Extract 4.2.14 from *Hyde v Pearce* [1982] 1 WLR 560; Extract 4.2.16 from *Colchester BC v Smith* [1992] Ch 421; Extract 4.2.20 from *Asher v Whitlock* (1865) LR 1 QB 1; Extract 4.2.21 from *St Marylebone Property Co Ltd v Fairweather* [1963] AC 510; Extract 4.3.1 from *Elitestone Ltd v Morris* [1997] 1 WLR 687; Extract 4.3.2 from *Holland v Hodgson* (1872) LR 7 CP 328; Extract 4.3.4 from *D'Eyncourt v Gregory* (1866) LR 3 EQ 382; Extract 4.3.5 from *Re De Falbe* [1901] 1 Ch 523; Extract 4.3.7 from *TSB Bank plc v Botham* [1996] EGCS 149, *Estates Gazette Case Summaries*, Reed Business Information; Extracts 4.3.8, 4.3.12 from *Hobson v Gorringe* [1897] 1 Ch 182; Extract 4.3.9 from *Melluish v BMI (No 3) Ltd* [1996] AC 454; Extract 4.3.11 from *Gough v Wood & Co* [1894] 1 QB 713; Extract 4.3.13 from *Re Samuel Allen & Sons Ltd* [1907] 1 Ch 575; Extract 5.1.2 from *HSBC Trust Company (UK) Limited v Quinn* [2007] EWHC (Ch) 1543; Extract 5.1.3 from *Alan Estates Ltd v WG Stores Ltd* [1982] Ch 511; Extract 5.2.1 from *Tiverton Estates Ltd v Wearwell Ltd* [1975] Ch 146; Extract 5.2.2 from *Pitt v PHH Asset Management Ltd* [1994] 1 WLR 327; Extract 5.2.4 from *Firstpost Homes Ltd v Johnson* [1995] 1 WLR 1567; Extract 5.2.5 from *Spiro v Glencrown Properties Ltd* [1991] Ch 537; Extract 5.2.8 from *North Eastern Properties Ltd v Coleman* [2010] 1 WLR 2715; Extract 5.2.9 from *Commission for the New Towns v Cooper (Great Britain) Ltd* [1995] Ch 259; Extract 5.2.12 from *McCausland v Duncan Lawrie Ltd* [1997] 1 WLR 38; Extract 5.2.13 from *Yaxley v Gotts* [2000] Ch 162; Extract 5.2.14 from *Kinane v Mackie-Conteh* [2005] WTLR 345, *Wills and Trusts Law Report*, [22-4], [26-9], [32], [39-41], [44-9], [51], Headnotes reprinted with permission from Legalease Limited; Extract 5.2.15 from *Cobbe v Yeoman's Row Management Ltd* [2008] 1 WLR 1752; Extract 5.3.4 from *Long v Tower Hamlets LBC* [1998] Ch 197; Extract 5.4.2 from *Standing v Bowring* (1885) 31 Ch D 282; Extract 5.4.3 from *Dewar v Dewar* [1975] 1 WLR 1532; Extract 5.4.4 from *Cochrane v Moore* (1890) 25 QBD 57; Extract 5.4.6 from *Re Wasserberg* [1915] 1 Ch 195; Extract 5.4.8 from *Re Cole* [1964] Ch 175; Extract 5.4.9 from *Re Stoneham* [1919] 1 Ch 149; Extract 5.4.10 from *Thomas v Times Book Co Ltd* [1966] 1 WLR 911; Extract 5.5.1 from *Trendtex Trading Corporation v Crédit Suisse* [1982] AC 679; Extract 5.5.4 from *Government of Newfoundland v Newfoundland Railway Co* (1888) 13 App Cas 199; Extract 5.5.5 from *Stoddart v Union Trust Ltd* [1912] 1 KB 181; Extract on page 155 from *Gorringe v Irwell India Rubber & Gutta Percha Works* (1886) 34 Ch D 128; Extract 5.5.6 from *Holt v Heatherfield Trust Ltd* [1942] 2 KB 1; Extract 5.5.7 from *Ward v Duncombe* [1893] AC 369; Extract 5.6.1 from *Re Cozens* [1913] 2 Ch 478; Extract 5.6.2 from *Jones v Lock* (1865) LR 1 Ch App 25; Extract 5.6.3 from *Richards v Delbridge* (1874) LR 18 Eq 11; Extract 5.6.4 from *Paul v Constance* [1977] 1 WLR 527; Extract 5.6.5 from *Re Bowden* [1936] Ch 71; Extract 5.6.8 from *Grey v IRC* [1960] AC 1; Extract 5.6.10 from *Vandervell v IRC* [1967] 2 AC 291; Extract 5.6.11 from *Neville v Wilson* [1997] Ch 144; Extract 6.2.1 from *Westdeutsche Landesbank Girozentrale v Islington LBC* [1996] AC 669; Extract 6.2.2 from *Air Jamaica v Charlton* [1999] 1 WLR 1399; Extract 6.2.3 from *Pettitt v Pettitt* [1970] AC 777; Extract 6.2.4 from *Sekhon v Alissa* [1989] 2 FLR 94, © Jordan Publishing Ltd; Extract 6.2.5 from *Jones v Maynard* [1951] Ch 572; Extract 6.2.7 from *Tinsley v Milligan* [1994] 1 AC 340; Extract 6.2.8 from *Bannister v Bannister* [1948] 2 All ER 133, reproduced by permission of Reed Elsevier (UK) Limited, trading as Lexis Nexis; Extract 6.2.9 from *Hodgson v Marks* [1971] Ch 892; Extract 6.2.10 from *Binions v Evans* [1972] Ch 359; Extract 6.2.11 from *Ashburn Anstalt v Arnold* [1989] Ch 1; Extract 7.1.1 from *Taylor's Fashions Ltd v Liverpool Victoria Trustees Co Ltd* [1982] QB 133; Extracts 7.1.2, 7.2.2 from *Crabb v Arun DC* [1976] Ch 179; Extract 7.1.3 from *Gillett v Holt* [2001] Ch 210; Extract 7.1.4 from *Cobbe v Yeoman's Row Management Ltd* [2008]

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Part I

Introductory matters

1

Basic property principles

In this chapter, we will consider some of the basic principles and distinctions to be observed in property law. Most of them will be further developed in later chapters and, as in many subjects, the basic principles may be more readily comprehended once some of the more detailed material has been considered.

1. General principles

We will investigate ideas of property through two contributions to the literature. These relate specifically to land, though many of the principles apply to all forms of property.

Extract 1.1.1

Peter Birks, 'Before We Begin: Five Keys to Land Law', in *Land Law: Themes and Perspectives* (eds Bright and Dewar) pp 457–463, 467–468, 470–473, 476–486 (footnotes omitted)

Land Law is a complex subject. It is not in the end a very difficult one. It is less unstable than other areas of the law. Yet it is hard to get into. The purpose of this chapter is to make access easier. It is impossible to improve access to a completely unknown quantity. The first section, therefore, asks what kind of category we are trying to understand.

WHAT KIND OF CATEGORY?

The name 'land law' suggests a simple contextual category: all the law about land. The law does use many such categories, ordered only by the alphabet: all the law about aviation, banks, commerce, dogs, education, and so on. They take as their subject some aspect of life, just as a non-lawyer would identify it. But in this case things are not quite so straightforward. By the end of this section we will have formulated a more complex proposition: land law, as generally understood, is a contextual subset of a legal-conceptual category.

...

The core of land law

A target has a centre. Taking land law as a simple contextual category, we can identify at least five topics... Four of these must on reflection be located in the second or third circles, just outside the bull's-eye at which we are aiming. They matter, but they do not relieve us of the intellectual necessity of mastering the core. Two belong largely in public law. One of these comprises the social control essential if the environment is to be protected. The other is the housing law which applies to local government tenancies. Within private law, a third unit lies in the law of civil wrongs and deals with the duties imposed by the law for regulating the behaviour of neighbours towards each other, especially through the torts of nuisance and trespass to land. Fourthly, there is the structuring of mega-wealth, the mission of the old Lincoln's Inn

conveyancers. That is breaking away, not specifically land law any longer but wealth management. Its principal vehicle is the trust, often enough offshore, in which land becomes just one kind of asset in a rolling fund. Fifthly and last of all, there is the unit at the very centre of the target. When lawyers speak of land law, it is usually to this core that they refer.

Every business needs premises, every factory needs a site. For most of us as private individuals our home is the centre of our lives. Functionally, this core of land law has the task of providing the structure within which people and businesses can safely acquire and exploit land for daily use, to live and to work. To discharge that function, it has to have its own conceptual apparatus. The proper content of this fifth unit thus becomes the nature, creation, and protection of interests in land. Those interests and their implications are the conceptual apparatus of our land law.

The word 'interests' is slightly evasive. The law recognizes different kinds of rights, among them property rights. By 'interest' we mean 'property right'. The category of all property rights (or, in other words and more simply, 'the law of property') is a legal-conceptual category. It differs from, say, the law of dogs in that its subject is a legal concept, the concept of a proprietary right. The core of land law is the subset formed when the conceptual category of 'property right' is confined to one context: the law relating to property rights in land. To focus on that core is neither to downgrade the importance of the units in the next circles nor to forget that in real life all the units which we have identified, and others, cohere together.

Land law in this core sense is, therefore, a contextual subset of a legal-conceptual category. There is a recurrent problem. Property rights in land have roots a millennium deep in a pre-commercial society in which land and wealth were virtually synonymous. The structuring of landed wealth, and the power that went with it, was then land law's principal mission. The subject of land law – the law, that is, of the recognized proprietary interests in land – is therefore intellectually entangled in a history not always obviously relevant to its contemporary function.

THE FIVE KEYS

The five keys have one-word tags: Time, Space, Reality, Duality, and Formality. There is a pervasive theme which has its own label: Facilitation. This might be said to be the string on which the five keys hang. There is also a complication. All five keys have to be turned together. Exposition is easiest when each point has a natural priority. Here there is no natural priority, and no expository device to achieve what King Arthur intended when he seated his knights at a round table.

Facilitation

Some areas of law are primarily concerned to inhibit undesirable conduct. This is most obviously true of the law relating to wrongs, whether criminal or civil. Even there, behind the inhibition, lies a facilitative goal – namely, to allow civilized life to be conducted free from the fear of harm. The wrong of nuisance facilitates the enjoyment of land, but primarily by inhibiting unreasonable interference. By contrast, other areas are primarily facilitative. The law of contract, for example, helps people do something which by and large they want to be able to do – namely, to make reliable agreements.

Like contract, land law is primarily facilitative. Each of the five keys, though some more obviously than others, can be seen as facilitating the achievement of goals which people routinely want to achieve. . . .

A landowner may be willing to pay a large sum for a permanent proprietary right to prevent building on the neighbouring land. The first instinct is to facilitate, but there are arguments the other way. Should he be able to sterilize the economic use of that land? In fact the law does allow such a right to be created. Restrictive covenants, as property rights, are a relatively new invention. . . .

TIME

Although bits do occasionally wash away or slip into the sea, land is in general permanent. For most human purposes we have to regard it as lasting for ever. There is a powerful urge to deal in slices of time. It is not confined to land. The institution of the trust makes it relatively easy to turn all kinds of wealth into an enduring fund, and that facility in turn excites and to a degree gratifies the urge to deal in slices of time. However, it is the natural permanence of land which makes slices of time a dominant feature of land law.

Two motivations

Why do people want to deal in slices of time? It is an urge which has been fed from at least two sources. One is essentially commercial, the other not.

The commercial motivation

Commercial motivation means, in plain words, the desire to get money out of land. There are all sorts of ways of getting money out of land. For instance, one can farm the land and sell the produce. The most extreme method of all is to sell one's whole interest in the land. That means selling the whole slice of time over which one has control. The largest interest in land – the greatest slice of time – is 'for ever'. In everyday conversation I tend to say 'my house' or 'the house I own'. In all probability, what I actually have in my house is 'for ever', a slice of time measured by the length of time the land will last. There is no harm in calling that ownership. That is what in effect it is. But in the technical language of the law that huge slice of time measured by the life of the land itself is called a fee simple. The fee simple in the land on which my house stands is worth about £200,000. I could mortgage it or sell it. But there is another possibility. I could keep 'for ever' and deal instead in a shorter slice of time.

The commercial motivation for dealing in lesser slices of time is to realize in money some of the value of the land without giving up one's whole interest. The lease is the proprietary interest which most obviously facilitates this. I might let my land for a fixed number of years, say for ten years. . . .

The family motivation

The primary non-commercial motivation for dealing in slices of time is concern for one's family. In obsolescent aristocratic terms this might be restated as a dynastic motivation. The idea of benefiting the different generations of one's family is perfectly natural. . . .

The evolution of the doctrine of estates

In ordinary language the sentence 'Mr Smith has an estate in Suffolk' suggests a goodish patch of Constable landscape of which Mr Smith is the owner. But in land law an estate is a slice of time. The doctrine of estates is the learning which tells you what slices of time the law allows or has allowed a landowner to deal in. A 'life estate' was a recognized estate at common law. . . .

SPACE

Mention of a piece of land by name – as, for example, Lord's Cricket Ground or Wembley Stadium – brings to mind an image of the surface of the land. But the surface is merely a cross-section of a space which, in a flat-earthish sort of way, we still think of as stretching infinitely up and down. Modern cosmology requires modification of the image of that space, but some of the mind's worst problems in comprehending its true shape have been overtaken by much humbler science. First balloons and then aeroplanes necessitated a rethink. The tube in which estates subsist has had to be cut off in order to deprive the surface-owner of exclusive control of the upper air. . . .

REALITY

In the technical language of the law 'real' never denotes the opposite of 'illusory' or 'fake'. It is usually an anglicization of the adjective from *res*, which is Latin for 'thing'. Hence, 'real' always indicates that something has some quality of or relation to a thing. If a creditor, about to lend money, asks for real security, he means that he wants to be able to turn against a thing for the purpose of obtaining what is due to him. That contrasts with personal security. A guarantee will allow the creditor an extra recourse, against the person of the guarantor. We could talk about 'thing-security' and 'person-security'. We do not. We distinguish instead between real and personal security.

A lawyer cannot be frightened of technical meanings. It helps, however, if each word pressed into technical service has just one technical meaning. Here there is more than one. The law uses 'real' to mean 'in some significant way thing-related', but the nature of the relation is not always the same. Very importantly, there is a difference between the 'reality' which is indicated in the contrast between real and personal property and the 'reality' indicated in the contrast between real and personal rights. Though the distinction between real and personal property is ancient and venerable, it is nowadays far less important than the distinction between real and personal rights.

Realty and personality

There is an almost perfect match between the category of real property and land. If a lay person hears 'real property', or 'real estate', or 'realty', what will come to mind will be an image of land. For most lawyers the effect will be the same. Some lawyers may just manage to remind themselves that they should be thinking more abstractly, not of the land itself, but of interests in land. 'Personal property' or 'personalty' similarly evoke cars, cows, televisions, crockery, pictures, money, and a host of other moveable things. In fact the correlation is not quite perfect. A lease of land, however long, is technically personality, and some moveable things are heirlooms and fall within the category of realty. The right to call a parson to the freehold in a church, called an advowson, was always realty.

In what sense is realty 'thing-related' and in what sense are personal things like cars not 'thing-related'? . . .

. . . In some actions you could recover the thing itself. Those actions came to be called 'real actions', 'real' meaning 'thing-related' in the simple sense that the person claiming would recover the very thing claimed. . . . It is almost a perfect truth that the category of specific recoverability extended no further than land. Hence the near-perfect correlation between realty and land.

Real rights and personal rights

We move now to the kind of 'reality' or 'thing-relatedness' which matters in the modern law. The key proposition is that land law is, centrally, the law of real rights in land. The slice of time which we call a lease, or, less commonly, a 'term of years', is for historical reasons personality or personal property, but it is indisputably a real right in land and as such central to land law. A fee simple is similarly a real right in land, the greatest of all.

People's wealth – their 'property' in the widest sense of that slippery word – consists in rights of two kinds, real rights and personal rights. It is important to say at once that there are different ways of expressing this distinction. 'Real' and 'personal' here anglicize the Latin labels *in rem* and *in personam*. Many people prefer to use the Latin labels. The Latin tells us that a right *in rem* is a right in or against a thing, while a right *in personam* is a right in or against a person.

One can change to different language. A right *in personam* can be called an obligation. A right *in personam* and an obligation are one and the same thing, but looked at from different ends. I have an overdraft. I owe my bank £1,000. The bank has a right *in personam*, the person

here being me. I have an obligation to pay. The relationship can be named from either end, and in practice we usually name it from the liability end. Hence we very frequently speak, not of the law of personal rights or of rights *in personam*, but of obligations. As for rights *in rem*, if we drop both the Latin and the latinized English, they usually become 'property rights' or 'proprietary rights'. We sometimes use 'property' loosely to mean 'wealth'. In that loose sense 'property' wobbles. Sometimes 'my property' evokes and is intended to evoke specific things, such as cars and clothes and cottages. Sometimes, and rather more technically, 'my property' denotes mere rights vested in me, such as a fee simple, a lease, ownership, or the obligations of my debtors. Whichever the focus, the loose notion of property as wealth is too broad to be useful in analysis. To think clearly the law has to draw a bright line between two classes of right, both of which can fall within the loose notion of wealth.

The bright line distinguishes between property and obligations. When that line is drawn, property clearly has a narrower and much more technical sense. Within wealth, taken as including all assets, the law of obligations is the law of rights *in personam* and the law of property is the law of rights *in rem*. Hence a 'property right' or 'proprietary right' is a real right, is a right *in rem*. The law of property is the law of all known real rights, and land law is the law of real rights in land.

What is the difference? The practical difference bears on this question. Against whom can the right be demanded? 'Demandability' is intelligible but not really English. But another word for 'to demand' is 'to exact', which gives us 'exigible' and 'exigibility'. A right *in rem* is a right the exigibility of which is defined by the location of the thing. The exigibility of a right *in personam* is defined by the location of the person. Where I have a right *in personam* the notional chain in my hand is tied round that person's neck. Where I have a right *in rem*, the notional chain in my hand is tied around a thing. Between me and the car which I own there is such a chain.

...

DUALITY

There is duality where a proposition is true in one conceptual dimension but is falsified or heavily modified in another. Our land law is shot through by instances. There is one of ubiquitous and fundamental importance – namely, the duality between law and equity. There is another, now of fading significance, which emanates from tenure. A third consists in the difference between beneficial interests and security interests. A fourth, perhaps inessential at the point of access to the subject, turns on the relativity of title.

Law and equity

Proprietary rights in land can be legal or equitable. The mind can cope with the proposition that English law is different from Scots law. It is more difficult to accept the existence within English law itself of two legal systems with different answers to many questions. Yet for centuries that was the position. The courts of common law administered common law, and the court of chancery administered its own law, called equity. And on many issues the court of chancery took a position different from that of the courts of common law. The institutional duality was abolished more than a century ago. Modern courts administer both law and equity, and the conflicts' rule laid down by statute is that, where law and equity differ, equity prevails. The conceptual duality continues. In some areas it has weakened and will weaken further. But, wherever the law of trusts has a role to play, the duality is here to stay. Where there is a trust, the law says *A* is owner but equity disagrees and prefers *B*. Or we might put it the other way about: wherever equity thinks *B* should be owner, even though the common law takes a different view, there is a trust. *A*, the owner at common law, becomes a trustee for *B*.

The law of trusts was equity's principal creation, and trusts have become the distinctive feature of the Anglo-American law of property. [Trusts are considered later in this chapter.]

Tenure

Tenure was once co-equal in importance with estates. After the Conquest all land was vested in the king. The king made grants to tenants in chief in return for military and other services. The tenants in chief subinfeudated to others, and so on, creating the characteristic feudal pyramid. Tenure was the service by which one held one's estate. Different tenures carried different incidents. In 1290 Edward I forbade further subinfeudation of freeholds. Alienation thenceforth could only be by substitution. An alienor had to step out of the pyramid and put the buyer into his place.

We need not follow out the rest of the story. We are interested only in the vestiges of tenure which survive in the modern law. There are only two points which matter. The most obvious is that all land is still technically held of the Crown, so that, in the tenurial dimension, it remains technically true that only the Crown owns the land. Every fee simple is held of the Crown by a notional tenure involving no services at all. The other is the duality between freehold and leasehold. . . .

Beneficial interests and security interests

This can be dealt with very shortly, though security is an immensely important subject. The vast majority of purchases of land are made at least in part with borrowed money, secured on the land which is acquired or on other land. This is common knowledge. . . . The word 'mortgage' covers a variety of differently structured securities. Nowadays the commonest kind is unequivocal, for the mortgagee acquires a right which can only be security interest, 'a charge by way of legal mortgage'. But it is possible for the same estate to be either a beneficial or a security interest. Historically, the lender-mortgagee took the fee simple. But the proposition that he was tenant in fee simple was heavily qualified by the fact that he held that estate as a security interest, not as a beneficial interest. His fee simple was held subject to the borrower's right to redeem. Since 1925 mortgagors no longer transfer the fee simple. . . .

Relativity of title

The interest one holds has to be distinguished from the title by which one holds it. Suppose you are unlucky enough to take a conveyance of a fee simple from someone who is merely a squatter. You go into possession of the land. *Nemo dat quod non habet*. The maxim suggests that you have nothing. You took a conveyance from someone who had nothing to give. However, you do have something. The reason lies in relativity of title. The law will protect a good title against a bad one, and a bad one against a worse one. . . .

FORMALITY

Formal requirements oblige people to do things in particular ways, usually ways which put them to some slight extra trouble. It might be, for example, that the law would treat a promise as binding only if you made it meekly kneeling upon your knees. In practice writing and registration are the formalities usually insisted upon. There can be lighter and heavier versions of both.

. . .

What does formality facilitate? What ends does it serve? Even though it lies outside the land law, it is convenient to answer by reference to the best-known formality of all. Everyone knows that a last will has to be made in writing and signed before witnesses. It is no use just scribbling it on the back of an envelope or whispering it to one's best friend. There are huge advantages in this formal requirement. It helps the person making the will think hard about the job to be done. Later, it goes a long way towards eliminating doubt and argument at a juncture in human affairs at which strife is all too near the surface. All hell would break out if a deceased's last will were a matter of proving by general evidence, and in the absence of the only person who could really know, what the last wishes really were. The formal will settles the matter.

It is much the same in land law. There is an extra reason too. It derives from the invisibility of real rights. Just as one cannot see a fee simple, so one cannot see an easement or a restrictive covenant. A neighbour's right to pass over a field does not reveal itself in a pink line, nor will even an infra-red camera disclose his right to restrict or forbid building. . . .

CONCLUSION

The purpose has been to introduce five aspects of land law, with a view to making access to it easier. It was said at the beginning that none of the five has any natural priority. This conclusion summarizes in slightly different order.

(1) It is the business of land law to say what property rights can exist in land. A property right is a real right, a right *in rem*. It has special characteristics, which distinguish it from a personal right, a right *in personam*. It is not exigible solely against the person against whom it arose.

(2) English law has an inheritance of duality. There are dualities implicit in tenure, in the difference between security interests and beneficial interests, and in the relativity of title. But above all there is the duality between law and equity. The real rights which land law recognizes can be legal or equitable. In a historically unitary system, equitable rights might be called 'weak' proprietary rights. Equitable proprietary rights are more vulnerable than legal rights. That is the price of equity's more relaxed attitude to 'reality'.

(3) The value of legal certainty, which the equitable jurisdiction seems on occasion to undermine, is in general reinforced by insistence on the rigour of formality, especially as against strangers who have given value. Formality has meant writing in one form or another, but nowadays it means above all the public registration of real rights in land. The legislator, in providing that some interests override the register, has attempted to foresee the cases in which, even against strangers, the destruction of unregistered interests would give rise to screams of pain.

(4) The surface of a piece of land is a cross-section of a space. Every space has the potential for multiple uses. The law goes some way towards allowing those uses to be split up and dealt with strand by strand. Proprietary facilitation of that goal has to be kept within limits. The sometimes obscure nature of those limits is a stumbling block.

(5) Time and slices of time have been the dominant theme. Land law continues to facilitate dealing in slices of time, most obviously through the lease. But the rise of the managed fund of wealth has brought it about that the long fight over tying up the land itself is no longer fought. The law has seen to it that, behind a trust, such future interests can in general be detached from the land to become interests in a fund. A residual facility remains to meet the accommodation needs of the family through a trust of land. The days have gone when land law's principal mission was to structure wealth and power. Institutions and individuals alike, if they have wealth worth planning, managing, and tying up, prefer trust funds with mixed portfolios.

Extract 1.1.2

Kevin Gray and Susan Francis Gray, 'The Idea of Property in Land', in *Land Law: Themes and Perspectives* (eds Bright and Dewar) pp 15–16, 18–21, 27–31, 35–40, 51 (footnotes omitted)

It is just over a century since, in a paper still regarded as seminal, Oliver Wendell Holmes observed that the trouble with law was not that there had been too much theory but rather that there had not been enough. We must, therefore, begin with some conceptualization about property.

A BRIEF INTRODUCTION TO THE JURISPRUDENCE OF PROPERTY

Few concepts are quite so fragile, so elusive and so often misused as the idea of property. Most everyday references to property are unreflective, naïve and relatively meaningless. Frequently

the lay person (and even the lawyer) falls into the trap of supposing the term 'property' to connote the *thing* which is the object of 'ownership'. But the beginning of truth about property is the realization that property is not a *thing* but rather a *relationship* which one has with a thing. It is infinitely more accurate, therefore, to say that one has property *in* a thing than to declare that the thing is one's property.

To claim 'property' in a resource is, in effect, to assert a strategically important degree of control over that resource; and to conflate or confuse this relationship of control with the actual thing controlled may often prove to be an analytical error of some substance. 'Property' is, rather, the word used to describe particular concentrations of power *over* things and resources. The term 'property' is simply an abbreviated reference to a quantum of socially permissible power exercised in respect of a socially valued resource. Used in this way, the word 'property' reflects its semantically correct root by identifying the condition of a particular resource as being 'proper' to a particular person. In this deeper sense, as we shall see later, the language of 'property' may have more in common with 'propriety' than with entitlement; and the notion of a 'property right' may ultimately have more to do with perceptions of 'rightness' than with any understanding of enforceable exclusory title.

It may be noted, furthermore, that the power relationship implicit in property is not absolute but relative: there may well be gradations of 'property' in a resource. . . . Far from being a monolithic notion of standard content and invariable intensity, 'property' thus turns out to have an almost infinitely gradable quality. And it follows, moreover, that to have 'property' in a resource may often be entirely consistent with the acquisition or retention by others of 'property' in the same resource. It is, in fact, the complex interrelation of these myriad gradations of 'property' which comprises the stuff of modern land law.

. . .

AMBIVALENT CONCEPTUAL MODELS OF PROPERTY

The task of the present chapter is to outline the various ways in which English law – and perhaps, more generally, common law jurisprudence – handles the idea of property in land. It will be argued that our dominant models of property in land fluctuate inconsistently between three rather different perspectives. It will be suggested that this doctrinal uncertainty – this deep structural indeterminacy – explains the intractable nature of some of land law's classic dilemmas, whilst simultaneously impeding constructive responses to the more immediately pressing challenges of twenty-first century land law. The common law world has never really resolved whether property in land is to be understood in terms of empirical facts, artificially defined rights, or duty-laden allocations of social utility. Although these three perspectives sometimes interact and overlap, it remains ultimately unclear whether the substance of property resides in the raw data of human conduct or in essentially positive claims of abstract entitlement or in the socially directed control of land use. In short, the idea of property in land oscillates ambivalently between the behavioural, the conceptual, and the obligational, between competing models of property as a *fact*, property as a *right*, and property as a *responsibility*.

Property as a fact

Much of the genius of the common law derives from a rough-and-ready grasp of the empirical realities of life. According to this perspective, the identification of property in land is an earthly pragmatic affair. There is a deeply anti-intellectual streak in the common law tradition which cares little for grand or abstract theories of ownership, preferring to fasten instead upon the raw organic facts of human behaviour. . . .

Throughout the history of English land law the operative concept has been *possession* rather than *ownership*: the common lawyer's overwhelming concern has been with the externally verifiable modalities of possessory control. Indeed, the property of estate ownership is ultimately

a derivative of 'exclusive possession', a phrase used in English law to denote not merely an exclusive factual presence upon land but also some inner assumption as to the power relationships generated by such presence. Correspondingly, the absence of estate ownership is epitomized in the 'property deficit' inherent, for instance, in the status of the mere 'lodger'. The lodger, unlike the tenant, is subject to the supervisory authority of the owner, who at all times 'retains his character of master of the house, and . . . retains the general control and dominion over the whole house'. . . .

Property as a right

The foregoing analysis of the law of real property has concentrated on property in land as a perception of socially constituted fact. A rather different – and not entirely consistent – focus is provided by the competing assessment of property in land as comprising various assortments of artificially defined jural right. On this view, the law of real property becomes distanced from the physical reality of land and enters a world of conceptual – indeed some would say virtually mathematical – abstraction. In sharp contrast to the crudely empirical foundations of property as a fact, the vision of property as a right rests upon a complex calculus of carefully calibrated 'estates' and 'interests' in land, all underpinned by the political theory implicit in the doctrine of tenure. All property relationships with land are, accordingly, analysed at one remove – through the intermediacy of an estate or interest in land. No citizen can claim that he or she owns the physical *solum*, merely that he or she owns some unitary jural right in or over that *solum*. One has 'property' in an abstract right rather than 'property' in a physical thing.

. . . The Crown's radical title is, in truth, no proprietary title at all, but merely an expression of the *Realpolitik* which served historically to hold together the theory of tenure. Under the tenurial system of tiered or hierarchical landholding, all land in England (save unalienated Crown land) was held, in relationships of reciprocal obligation, either mediately or immediately of the Crown. It remains the case even today that no subject can own lands allodially – that is, outside the tenurial scheme of things – although all tenures have now been commuted to a uniform 'socage tenure' directly from the Crown.

It was left to the doctrine of estates to quantify the grades of abstract entitlement which might be enjoyed by any particular tenant (or landholder) within the tenurial framework. This doctrine spelt out a rich taxonomy of 'estates' in the land, each estate representing an artificial proprietary construct interposed between the tenant and the physical object of his tenure. Each tenant owned (and still owns) not land but an *estate* in land. The precise nature of the estate was graded by its temporal duration and by the possible attachment of variegated conditions precedent or subsequent. Each common law estate – whether the fee simple, the fee tail, or the life estate – comprised a time-related segment of the bundle of rights and powers exercisable over land; and the doctrine of estates effectively provided diverse ways in which three-dimensional reality might be carved up in a fourth dimension of time.

In the form of the common law estates, English land law thus comprised, from the earliest times, a field of highly manipulable abstract constructs which conferred enormous flexibility in the management of wealth. . . .

Today the taxonomy of the common law estates is still largely preserved in the property legislation of 1925, although with necessary modifications and additions. The fee simple absolute in possession remains as the primary estate in English law and is now joined as a legal estate by the term of years absolute. . . . Thus the 1925 legislation seeks to maintain consistently the dogma that landownership and use are mediated by the distribution, not of land as such, but of intangible jural entitlements interposed between persons and land. The perspective embraced by the statutory schema is of property as a right, precisely on the footing that the only property one can have is *in a right*.

Yet English land law remains inevitably a curious blend of the conceptual and the pragmatic, the cerebral and the material. Certainly, the conceptual purity of systematically ordered estates

and interests provides an intellectual base for the rational manipulation of axiomatic truths and for the multiple applications of propositional dogma so familiar to the student. But even the austere regime of the 1925 property legislation contains its share of mongrelized ideas, convenient adaptations, and internal contradictions. English land law reveals, for instance, an intermittent tendency to conflate property as fact with property as right, as evidenced by the way in which statutory definitions of 'land' are expressly fashioned to include 'an easement, right, privilege, or benefit in, over, or derived from land'. This reification of intangible entitlement – a frequent feature of the common law mind-set – brings about the result that appurtenant easements become notionally affixed to their dominant tenement rather as fixtures become annexed to realty, their benefit passing with any subsequent conveyance or transfer of the relevant land.

Other, less obvious but not less significant, implications have gathered around the conceptualization of property as a *right* rather than as a *fact*. During the twentieth century a pre-occupation with the supposedly crystalline essence of property rights has conduced to a wholly mistaken theory as to the potential significance of property for third parties. Common lawyers, having once conceived of property in terms of artificially pre-packaged commodities of tightly defined right, found it easy to embrace the seductive fallacy which still pervades the common law understanding of property. 'Property' appeared to comprise those rights which were sufficiently hard-edged and durable to be commercially and, no less perversely, it seemed to follow that only those rights which could be bought and sold could ever constitute 'property'. In other words, the crisp definitional quality which facilitates the commercial trading of identifiable assets began – in a wholly illusory relationship of cause and effect – to make alienability or transmissibility appear as essential qualifying characteristics or hallmarks of 'property' itself.

Nor did the fallacy stop there. In a closely associated *non sequitur*, it came to be believed that, in order to enjoy 'proprietary' as distinct from merely 'personal' quality, rights must be capable of an even more general third-party impact. Not only must rights of property be capable of conferring benefits on third parties through onward sale; their proprietary character was, in turn, reinforced by their potential to impose enforceable burdens on other strangers. Beguiled again by the heavily formative pragmatics of the nineteenth century market place, the common lawyer fell into the lazy confusion that something was 'property' if sufficiently identifiable to burden third parties and, conversely, that the only rights which could adversely affect third parties were rights sufficiently clear-cut and durable to constitute 'property'. Hence emerged the convenient, but wholly mendacious, proposition that asset entitlements comprised 'property' if enforceable against strangers; and such entitlements were, of course, enforceable against strangers provided that they were 'proprietary'.

The absurd circularity of this concentration on assignability of benefit and enforceability of burden is almost too embarrassing to recount, yet its influence has infiltrated even the most exalted levels of common law decision-making. In so far as proprietary character is made to depend upon some supposed quality of 'permanence' or 'stability' – to use the terms adopted by Lord Wilberforce in *National Provincial Bank Ltd v Ainsworth* – the definition of 'property' becomes patently self-fulfilling. Quite often – as, for instance, with the 'deserted wife's equity' in dispute in *Ainsworth* itself – the reason for asking whether a particular right is *proprietary* is precisely in order to determine whether the right is capable of binding third parties and thereby attaining the relevantly critical qualities of 'permanence' and 'stability'. Proprietary character cannot be credibly or satisfactorily predicated in terms of tautological consequence, although this is exactly the trap induced by the common lawyer's ready disposition to see property as discrete blocks of conceptual entitlement. The initial judgment whether a particular claim is sufficiently hard-edged and durable to rank as property has tended, quite irrationally, to pre-determine the question of binding impact on strangers.

Lord Wilberforce's proprietary criteria of alienability and enduring impact have often served to stultify emerging, and important, developments in the law – another example coming to the fore in the contemporary recognition of traditional land rights in Australia. Once again it was, significantly, the conceptualization of property in terms of abstract right rather than empirical fact which, for two centuries, disabled the common law from recognizing the proprietary nature of Australian native title. . . .

Property as a responsibility

A third model of property in land is provided by an alternative – less widely acknowledged – perspective which views property, not in terms of an abstract estate or interest, but in terms of each of the isolable strands of utility or use power which combine variously as the constituent elements of any land interest. By a process sometimes known as 'conceptual severance', this approach separates and identifies the many elements of utility which can characterize relationships with land, and then concedes the label 'property' to each individual element in turn.

Land may, of course, be turned to advantage in many overlapping ways; it may generate utilities of occupancy, enjoyment, consumption, investment, exploitation, exchange, endowment, aesthetic appreciation, and so on. These elements of utility all require to be held in some sort of balance, and our third model of property in land focuses on the way in which the precise balance or mix of utilities inherent in any particular landholding is subjected, through state intervention, to an overarching criterion of publicly defined responsibility. It follows, moreover, that, when there is any addition to, or subtraction from, the bundle of utilities enjoyed by any person, it can be suggested that a movement or transaction of 'property' has occurred – a proposition not only of venerable authority in English law, but also of huge contemporary relevance to the jurisprudence of environmental regulation and just compensation.

On the present analysis, property comprises not so much a bundle of rights as a bundle of individuated elements of land-based utility. The modern governmental role in regulating all land use is now so pervasive that these elements of utility are best seen as dispensed in various combinations by the state, subject only to occasional alteration either by private bargain or in accordance with supervening considerations of community policy. A plethora of regulatory controls, over matters ranging from urban planning to the conservation of natural resources, testifies to the constant engagement of the modern state in the constraint of land user for purposes of public amenity and welfare. Estate ownership is thus constantly stripped back to a bare residuum of socially permitted power over land resources, and the regime of property in land comprises simply a distribution – on a vast scale – of diverse patterns of state-approved usufruct, each heavily conditioned by the public interest. In effect, property in land is constituted by those publicly endorsed user forms which the state, at its discretion, allows individuals to enjoy consonantly with large strategies of public policy and social design. Property is no more than a defeasible privilege for the citizen.

. . .

CONCLUSION

This chapter has attempted to highlight three ways in which common law jurisprudence characteristically conceives of property in land. The chapter has also adumbrated some of the difficulties and challenges implicit in each of these divergent approaches. At different times and in many different contexts our notion of property has resonated with a varying sense that property emerges as a self-constituting fact or derives from some abstract jural entitlement or even emanates from the state control of socially responsible land use. The truth is, of course, that these alternative models of property do not exist in resolute opposition, for they are bound together in a creative tension which is part of the richness of our land law. Relativities of time and place certainly constrain the applicability of each of these modes of perception, and this

chapter has pointed to some of the problems generated by the mismatching of sense and context. Each analysis nevertheless provides, in its own way, an important focus upon the essentially human institution of property, whilst reminding us of the ultimately elusive quality which still attaches to the core of the phenomenon.

Comment

- (1) In what ways do these perceptions of land law – and property law generally – differ?
- (2) The paper by the Grays is highly critical of the role of third parties being bound in defining property rights.¹ What is this role? Is the criticism convincing? What approach would Birks take?

Perhaps the real point is that there is no clearly defined ‘land law’ or ‘property law’: the labels can be used for whatever content a course, or an author, chooses. This book is based upon interests which bind purchasers: the heart of most courses on property law. As Birks stresses, there are other important and challenging questions, but they are less central to most lawyers’ notions of property.

One element of property which may be worth considering further is the power of exclusion: if I own a car, I can stop others from interfering with it. We recognise property rights outside physical assets: copyright in a book and patents provide examples, where others cannot exploit the words or processes involved. This has led to attempts to develop further property claims, in order to provide protection for some right or expectation. By and large, the courts are reluctant to extend property notions in response to such invitations.

Extract 1.1.3

Victoria Park Racing & Recreation Grounds Co Ltd v Taylor (1937) 58 CLR 479

The defendant broadcast the plaintiff’s racing activities from premises which overlooked their racecourse. The plaintiff sought to restrain this.

LATHAM CJ: . . . It has been argued that by the expenditure of money the plaintiff has created a spectacle and that it therefore has what is described as a quasi-property in the spectacle which the law will protect. The vagueness of this proposition is apparent upon its face. What it really means is that there is some principle (apart from contract or confidential relationship) which prevents people in some circumstances from opening their eyes and seeing something and then describing what they see. The court has not been referred to any authority in English law which supports the general contention that if a person chooses to organize an entertainment or to do anything else which other persons are able to see he has a right to obtain from a court an order that they shall not describe to anybody what they see. . . .

I find difficulty in attaching any precise meaning to the phrase ‘property in a spectacle’. A ‘spectacle’ cannot be ‘owned’ in any ordinary sense of that word. Even if there were any legal principle which prevented one person from gaining an advantage for himself or causing damage to another by describing a spectacle produced by that other person, the rights of the latter person could be described as property only in a metaphorical sense. Any appropriateness in the metaphor would depend upon the existence of the legal principle. The principle cannot itself be based upon such a metaphor.

Even if, on the other hand, a spectacle could be said to exist as a subject matter of property, it would still be necessary, in order to provide the plaintiff in this case with a remedy, to show

¹ See also Dixon in Tee (ed.), *Land Law: Issues, Debates, Policy*, pp 16–18.

that the description of such property is wrongful or that such description is wrongful when it is widely disseminated. No authority has been cited to support such a proposition.

DIXON J: . . . So far as freedom from view or inspection is a natural or acquired physical characteristic of the site, giving it value for the purpose of the business or pursuit which the plaintiff conducts, it is a characteristic which is not a legally protected interest. It is not a natural right for breach of which a legal remedy is given, either by an action in the nature of nuisance or otherwise. The fact is that the substance of the plaintiff's complaint goes to interference, not with its enjoyment of the land, but with the profitable conduct of its business. If English law had followed the course of development that has recently taken place in the United States, the 'broadcasting rights' in respect of the races might have been protected as part of the quasi-property created by the enterprise, organization and labour of the plaintiff in establishing and equipping a racecourse and doing all that is necessary to conduct race meetings. But courts of equity have not in British jurisdictions thrown the protection of an injunction around all the intangible elements of value, that is, value in exchange, which may flow from the exercise by an individual of his powers or resources whether in the organization of a business or undertaking or the use of ingenuity, knowledge, skill or labour. . . .

In dissenting from a judgment of the Supreme Court of the United States by which the organized collection of news by a news service was held to give it in equity a quasi-property protected against appropriation by rival news agencies, Brandeis J gave reasons which substantially represent the English view and he supported his opinion by a citation of much English authority (*International News Service v Associated Press*). His judgment appears to me to contain an adequate answer both upon principle and authority to the suggestion that the defendants are misappropriating or abstracting something which the plaintiff has created and alone is entitled to turn to value. Briefly, the answer is that it is not because the individual has by his efforts put himself in a position to obtain value for what he can give that his right to give it becomes protected by law and so assumes the exclusiveness of property, but because the intangible or incorporeal right he claims falls within a recognized category to which legal or equitable protection attaches. . . .

In my opinion, the right to exclude the defendants from broadcasting a description of the occurrences they can see upon the plaintiff's land is not given by law. It is not an interest falling within any category which is protected at law or in equity. . . .

Comment

(1) This is one of a number of arguments advanced by the plaintiff; all were unsuccessful. The central argument was based upon the tort of nuisance. Why was the notion of property significant?

(2) Is the development of property concepts an appropriate way to develop legal protection against invasions of privacy?

2. The new property

In recent decades, property terminology has been used to advance the protection of claims which have not been traditionally considered as property. The label 'new property' has been applied in this setting.

Extract 1.2.1

Harris, *Property and Justice* pp 149–151 (some footnotes omitted)

. . . When the boundaries of the concept of property are discussed in modern Anglo-American theory, reference is frequently made to an article written by Charles Reich, published in 1964,

which is entitled 'The New Property'.ⁱ Reich seeks to show that the wealth-allocation function of property institutions is, in modern societies, of diminishing relative importance because of the growth of 'government largesse'. Wealth is increasingly allocated through welfare benefits, government jobs, occupational licences, State franchises, contracts, and subsidies, and access to State-owned resources and to governmental services. Allocation takes place in accordance with the assessment by various governmental agencies of what would best serve the public interest. In the past, Reich contends, holdings of wealth in the form of private property had the great merit of securing independence from the State. However, it also had the great demerit that holders of wealth were increasingly able to dominate the lives of others, especially as wealth became consolidated in the form of large corporate holdings. The 'public-interest State' has evolved as a counter to this domination-potential of private property holdings, as well as a vehicle for performing many functions which modern societies expect their governments to discharge. But with it has come the loss of independence which private property once secured.

The discretionary power to award, withhold, or terminate largesse introduces new dangers of illegitimate domination . . .

Reich disavows any suggestion that the remedy for the independence-threatening aspects of the public-interest State is to turn the clock back to a time when wealth was distributed via agglomerated private holdings. Government largesse we must have. He advocates measures which will, so far as possible, ensure that the wealth which results from government largesse confers upon its recipients an independence equivalent to that which private property provides. Discretionary receipts should be replaced, where possible, with entitlements held as of right. Substantive restraints should be imposed so that discretion cannot be exercised on improper grounds – especially so as to prevent rights guaranteed by the constitution being indirectly infringed. All withholding or cancellation of government largesse should be subjected to procedural due process.

That independence is one of the instrumental justifications for property institutions, and that domination-potential counts as an important disjustification, are matters considered later in this book. For the moment we are only concerned with the question whether Reich's important diagnosis entails an expansion in the concept of property beyond the conventional understanding which the stipulation at the beginning of this Chapter seeks to capture. Some commentators have taken it for granted that it does: that, according to the diagnosis, welfare benefits, government jobs, subsidies, and other categories of largesse simply are, or should be thought of as being, 'property'.ⁱⁱ Consider, however, the following three claims which emerge from Reich's article: (1) property used to secure independence; (2) the terms on which government largesse is available today threaten independence; (3) we ought to change the terms on which largesse is allocated so that it accords an independence similar to that which property once afforded. None of these claims warrants any shift in what property means. If the article had been entitled '[t]he need for a property substitute', and if it had not ended with the clarion call: '[w]e must create a new property', there would have been no doubt about it. No expansive definition would have been proposed. As it is, the article can be understood as calling for an extension in the concept of property beyond its conventional use in the service of a justificatory analogy. Property is justified by its instrumental advantages in securing citizen independence against the all-encroaching public-interest State. The recommended reforms in the way largesse is distributed are justified because they too would secure independence. Therefore, they should also be called 'property'.

Note, however, that it is the reformed largesse, not the present array of discretionary welfare benefits and the rest, to which the extended label is to be applied. As Reich says: '[g]overnment largesse is plainly "wealth", but it is not necessarily "property".' Different concept-expansion arguments, not advanced by Reich, can be put forward for insisting that discretionary access to wealth already is property. . . . It can be argued that if they are given the property label, then they can be subsumed under constitutional provisions which protect 'property'; or that

announcing the label will serve as part of a political rhetoric which will induce people to accord them greater respect.

Reich's justificatory-analogy argument raises many problems. What if one disagrees with his contention that independence was a justification for property institutions whilst agreeing with his proposed reforms for *largesse*? What if one supposes that reformed *largesse* cannot or should not be modelled on property-substitutes? What if one considers that claims to *largesse* should indeed become entitlements as of right, but that, unlike cashable rights, they should not be freely tradable or fall within the purview of bankruptcy law? In all these cases, calling reformed *largesse* 'property' serves only to confuse. 'The New Property' was a catchy title for an article which highlighted important dangers of the modern wealth-allocating State. But it is possible to support any or all of Reich's remedial proposals without any expansion in the concept of property.

ⁱ Charles A Reich, 'The New Property' (1964) 73 YLJ 733.

ⁱⁱ See, e.g., Bruce A Ackerman, *Private Property and the Constitution* (Yale UP, 1977), 165, n. 115. C B MacPherson, 'Capitalism and the Changing Concept of Property', in E Kamenka and R S Neale, *Feudalism, Capitalism and Beyond* (Edward Arnold, 1975), 115.

Comment

(1) What is the new property?

(2) Do these highly sceptical comments mean that property lawyers can and should decry new property analyses?

3. Trusts and equitable interests

As Professor Birks observes,² equity (and in particular the trust) has played a central role in the development of English property law. Later chapters will consider particular aspects of trusts and equitable interests, but we must first note some general principles. The essential nature of the trust is that the settlor gives property to the trustee to hold for the benefit of the beneficiary; in some respects the trustee can be seen as a sort of manager of the property.

Extract 1.3.1

Maitland, *Equity* (2nd ed) pp 23, 30–31, 117, 129, 139, 147–149, 153 (footnotes omitted) by permission of Cambridge University Press

Of all the exploits of Equity the largest and the most important is the invention and development of the Trust.

It is an 'institute' of great elasticity and generality; as elastic, as general as contract.

This perhaps forms the most distinctive achievement of English lawyers. It seems to us almost essential to civilization, and yet there is nothing quite like it in foreign law. Take up for instance the *Bürgerliches Gesetzbuch* – the Civil Code of Germany; where is trust? Nowhere. This in the eyes of an English practitioner is a big hole.

Foreigners don't see that there is any hole. 'I can't understand your trust', said Gierke to me. We must ask why this is so. Well, the trust does not fit easily into what they regard as the necessary scheme of jurisprudence.

Let me explain a little; for this will be of service in practical consideration of the nature of equitable rights.

² See Extract 1.1.1, p 3 above.

Jurists have long tried to make a dichotomy of Private Rights: they are either *in rem* or *in personam*. The types of these two classes are, of the former, *dominium*, ownership; of the latter the benefit of contract – a debt.

Now under which head does trust – the right of *cestui que trust*ⁱ – fall? Not easily under either. It seems to be a little of both . . .

The best answer may be that in history, and probably in ultimate analysis, it is *jus in personam*; but that it is so treated (and this for many important purposes) that it is very like *jus in rem*. A right primarily good against *certa persona*, viz. the trustee, but so treated as to be almost equivalent to a right good against all – a *dominium*, ownership, which however exists only in equity. And this is so from a remote time.

...

Did the Chancellor ask himself what sort of right he was giving, whether *in rem* or *in personam*; did he ask himself under what rubric this new chapter would stand? Probably not. As between the feoffor (*cestui que use*) and the original feoffees the case is plain – it is scandalous dishonesty if the feoffees disregard the trust.

It might have been regarded as a breach of contract. But this was not done, perhaps because breach of contract was a matter for the common law. At any rate the language of contract was not used – there was no formal promise exacted from the feoffees, no '*obligo me*', etc. It seems to be felt from the first that contract is not what is wanted – that contract won't do.

There is one strong reason against treating it as a contract, the feoffor (who is *cestui que use*) has then a chose in action and this would be inalienable. But our landowner did not mean to exchange ownership of land for the (inalienable) benefit of a promise.

No, there is no 'obligatory' language: all is done under cover of 'use'; a little later of 'confidence' and 'trust'.

Secondly, we see this at an early time: the remedy is given not to the trustor but to the *destinatory*. In the earliest instances the trustor and the *cestui que trust* (or *use*) are the same person – still it is as *destinatory*, not as 'author of the trust' that he has the remedy. This marks it off from contract. Refer to John of Gaunt's will; consider the disposition in favour of the Beauforts – it would not do to give the remedy to John of Gaunt's heir: he is the very person who is interested in breaking the will.

This principle runs through our law of equity to the present day – the *destinatory*, beneficiary, *cestui que trust* has the remedy. (It is an unfortunate term, '*cestui que trust*', with an obscure history. It suggests a falsehood at this point.)

Thirdly, as regards estates and interests the common law of land is to be the model. . . . The new class of rights is made to look as much like rights *in rem* (estates in land) as the Chancellor can make them look . . .

But (fourthly) the Chancellor can not create new rights *in rem*. So to do would be not to supplement but to overrule the common law . . .

Equitable estates and interests are rights *in personam* but they have a misleading resemblance to rights *in rem*. This resemblance has been brought about in the following way. The trust will be enforced not only against the trustee who has accepted it and his representatives and volunteers claiming through or under him, but also against persons who acquire legal rights through or under him with knowledge of the trust – nor is that all; it will be enforced against persons who acquire legal rights through or under him if they ought to have known of the trust . . .

Here then again we get a distinction between legal and equitable rights, and this is quite intelligible, for legal estates are proprietary rights, ownership or fractions of ownership, equitable rights are not. Negligence will not deprive one of ownership. It is excessively negligent for one to leave one's purse on the counter of a shop, but one shall not for that reason lose ownership. Fraud or connivance at fraud is a different matter. But as between merely equitable

claimants, the Court can consider the moral merits of the parties – *qui prior est tempore potior est jure* is a natural rule where merits are equal, but negligence may be a ground for postponing an older to a younger equity.

...

By this time we shall have convinced ourselves, if we required conviction, that it is practically unsafe to regard equitable estates and interests as rights *in rem*, as ownership or fractions of ownership. As to what I may call the theoretic question, the question of appropriate classification, I will say one word more. I do not for one minute think that it should be part of our conception of a right *in rem*, that the person who has that right can never be deprived of it save by his own act...

And now a few words as to the general relation between Equity and Law. A few years ago there was, if I may so speak, a visible distinction. If it was impossible to explain the distinction without a long historical discourse, still it was possible to point to the distinction as a visible matter of fact – to say to the inquirer 'Go to Westminster Hall and you will there see courts administering Common Law; then go to Lincoln's Inn and you will there see courts administering Equity.' The existence of the distinction was made emphatic in every sort of way. In the Courts of Common Law were judges hearing 'actions' begun by 'writ', carried on by 'declaration' and 'plea' with a system of procedure of which trial by jury was the central fact. In the Court of Chancery were the Chancellor, Master of the Rolls, and Vice-Chancellors hearing 'suits' begun by 'bill' with a system of procedure which made no use of a jury and differed at almost every possible point from the procedure of the Common Law...

And now all this has passed away; one can no longer say 'Here is a Court which administers nothing but common law, and there a Court which administers nothing but equity.' The task of the student is really all the harder. Let us look at the matter a little.

In the first place let us guard ourselves against the fallacy of supposing that the Chancery Division of the new High Court is the Court of Chancery under a new name, or that the old courts of common law are now called the Queen's Bench Division. This would be a great error. It is true that actions of certain kinds have been assigned to one division, actions of certain other kinds to the other, though in many cases the plaintiff has a choice. This is a convenient division of labour – the trying with a jury is done in one division, the other has a machinery adapted for taking accounts. But a rule of court might alter this assignment, and an Order in Council might abolish the existing 'divisions' – the Common Pleas Division and the Exchequer Division were thus merged in the Queen's Bench Division. And, to come to a more important point, every judge in whatever division he may be sitting is bound to apply every rule whether of common law or of equity that is applicable to the case before him. He cannot stop short and say that is a question of common law which I am incompetent to decide, or, that is a merely equitable right and I can take no notice of it.

But if this be so, if the two bodies of rules have to be administered together, have not the terms law and equity lost their meaning? Well, as terms, they are merely historical terms, and such they have been for centuries past; but they will endure for a long time yet, for they do express distinctions of the utmost importance – distinctions among the rules of substantive law – and if we had not inherited this pair of terms we should be obliged to invent others to serve the same purpose.

For the Judicature Act did not alter the substantive law – save in a few points to be hereafter mentioned – did not change the nature of rights or even give new remedies. It only made a thorough change in procedure – introducing a new procedural code, partly borrowed from that of the common law, partly borrowed from that of equity, and in part newly invented.

A few points of substantive law were expressly dealt with by section 25... then follows the 11th [sub-section] to which I wish to draw attention. 'Generally in all matters not herein-before particularly mentioned in which there is any conflict or variance between the rules of equity and the rules of the common law with reference to the same matter, the rules of equity shall prevail.'

Now what did this sub-section do? Did it turn equitable estates into legal estates, acting like a second Statute of Uses? Of course it did not. There was no conflict or variance here between common law and equity. The statement that T is owner but is a trustee for E is not self-contradictory. It is no more self-contradictory than the statement that A is the owner of goods but owes more debts than he can pay. Austin, we have seen, speaking of the position of one who has agreed to buy land but had not yet obtained a conveyance, talks of the conflict between law and equity, of how equity held that the contract passed a *jus in rem*. To speak thus is to take a very superficial view of the case – the right that the purchaser gets by the contract is no right *in rem*, and there is no conflict between law and equity.

...

The Judicature Act 1873, s 25, sub-s 11, speaks, we have seen, of cases in which there is a conflict or variance between the rules of the common law and the rules of equity. We have seen, however, that normally the relation between equity and law has not been one of conflict. How could it have been otherwise? After all, for centuries past this country has been decently governed and reasonably peaceful, and this would not have been so if we had really had two conflicting systems of law in full operation. 'The courts of common law said that the trustee was the owner, but the Court of Chancery said that the *cestui que trust* was the owner' – if we take this crude statement literally it is an invitation to civil war. No, we ought to think of the relation between common law and equity not as that between two conflicting systems, but as that between code and supplement, that between text and gloss. And we should further remember this, that equity was not a self-sufficient system – it was hardly a system at all – but rather a collection of additional rules. Common law was, we may say, a complete system – if the equitable jurisdiction of the Chancery had been destroyed, there still would have been law for every case, somewhat rude law it may be, and law imperfectly adapted to the needs of our time, but still law for every case. On the other hand, if the common law had been abolished equity must have disappeared also, for at every point it presupposed a great body of common law.

ⁱ [The beneficiary under a trust.]

Comment

(1) Maitland's analysis that equitable interests are not rights *in rem* is not generally accepted today. Nevertheless, the stress on the trust as involving obligations owed by the trustee is faithful to equitable analyses past and present; it is always worth remembering.

(2) How does the trust differ from contractual analyses?

(3) How can one tell whether an interest is equitable or legal?

(4) Why does not the merger of the courts of law and equity by the Judicature Acts 1873–75 spell the end of the distinction between legal and equitable interests? A broader view of the Acts may have been taken by Jessel MR in *Walsh v Lonsdale*.³

(5) It will be seen in the following chapter that the property legislation of 1925 has made significant changes in the division between legal and equitable interests and also in the effect of equitable interests.

Only rarely is it necessary for the courts to consider the nature of the rights of a beneficiary under a trust. When the question does arise, it can be very difficult.

³ (1882) 21 Ch D 9 (Extract 14.2.8 below), explained by Maitland in Extract 14.2.10.

Extract 1.3.2

***Baker v Archer-Shee* [1927] AC 844**

For taxation purposes, it was crucial to determine whether Lady Archer-Shee, a beneficiary entitled to the income, was entitled to the dividends received by the trustees, or merely to the income handed over by the trustees to her.

LORD WRENBURY: . . . My Lords, the question is not what the trustees have thought proper to hand over and have handed over (which is question of fact) but what under the will Lady Archer-Shee is entitled to (which is question of law). The trustees, of course, have a first charge upon the trust funds for their costs, charges and expenses, and American income tax will be a tax which they would have to bear and which would fall upon the beneficiary. But this does not reduce the right of property of the beneficiary to a right only to a balance sum after deducting these. If an owner of shares deposits them with his banker by way of security for a loan he is not reduced to being the owner of a balance sum being the difference between the dividends on the shares and the interest on the loan. He is the owner of the equity of redemption of the whole fund. If a landowner employs an agent to collect his rents and authorizes him to deduct a commission he does not cease to be owner of the rents. Under Mr Pell's will Lady Archer-Shee (if American law is the same as English law) is, in my opinion, as matter of construction of the will, entitled in equity specifically during her life to the dividends upon the stocks.

LORD CARSON: . . . in my opinion the Master of the Rolls correctly stated the law when he saidⁱ 'that in considering sums which are placed in the hands of trustees for the purpose of paying income to beneficiaries, for the purposes of the Income Tax Acts, you may eliminate the trustees. The income is the income of the beneficiaries; the income does not belong to the trustees.'

LORD BLANESBURGH (dissenting): My Lords, her position from an English point of view, could not, I think, be better put than it is by Rowlatt J in his judgment.ⁱⁱ 'What this lady enjoys,' he says, 'is not the stocks, shares and rents or other property constituting the trust fund under the will; what she has is the right to call upon the trustees, and, if necessary, to compel the trustees, to administer this property during her life so as to give her the income arising there from according to the provisions of the trust. Her interest is merely an equitable one, and it is not an interest in the specific stocks and shares constituting the trust fund at all. There is no doubt about the correctness of that proposition.'

ⁱ [1927] 1 KB 123.

ⁱⁱ [1927] 1 KB 116.

Comment

- (1) The House of Lords split 3:2 in deciding that there was entitlement to the dividends.
- (2) What would Maitland have made of the question? The decision has always been controversial: is it consistent with equitable principles?
- (3) Lord Hoffmann has said:⁴ 'But a trustee in English law is not an agent for his beneficiary. He contracts in his own name with a right of indemnity against the beneficiary for the liabilities he has incurred.' How far is this consistent with the majority in *Baker v Archer-Shee*?

⁴ *Ingram v IRC* [2000] 1 AC 293 at p 395.

A. Equitable interests and equities

So far, much of our stress has been on trusts, which constitute the most significant contribution of equity to property law. However, equity also developed new forms of interests. Three major examples are the mortgage, the estate contract and restrictive covenants. For mortgages, equity developed the principle that the borrower is always able to recover the property on which the loan is secured (the equitable right to redeem, or equity of redemption). Estate contracts include the everyday contract to buy land, together with options. Because equity is willing to grant specific performance of such contracts and ‘equity treats as done what ought to be done’, the purchaser is treated as having an equitable interest from the outset. Restrictive covenants, a relative newcomer as a mid nineteenth-century development, enable one landowner to restrict the use of his or her land for the benefit of neighbouring land. All these will be considered in detail later on.

Equities constitute a more dubious category. The label is used to cover two rather different types of rights, both less definitive than equitable interests. The existence, content and significance of the equity category are all controversial. They differ from equitable interests as regards when they will bind purchasers. This last point today applies only to unregistered land; it is considered in Chapter 9.⁵

Extract 1.3.3

***Latec Investments Ltd v Hotel Terrigal Pty Ltd (in liquidation)*
(1965) 113 CLR 265**

KITTO J: . . . It is the case of a suit ‘where there are circumstances that give rise to an equity as distinguished from an equitable estate – as, for example, an equity to set aside a deed for fraud, or to correct it for mistake’.ⁱ . . . each of the illustrations Lord Westbury chose [in *Phillips v Phillips*ⁱⁱ] was also a case where the equity was accompanied by an equitable interest which might constitute an equitable estate. So much had been shown by decisions of most eminent judges, at least twice in the ten years before his Lordship spoke: see *Stump v Gaby*,ⁱⁱⁱ *Gresley v Mousley*,^{iv} and Lord Westbury’s judgment gives every indication of an intention to state systematically the effect of previous decisions, and not to depart from them in any degree. The illustrations therefore make it clear, it seems to me, that the cases to which his Lordship was referring were not only those in which there is an assertion of an equity unaccompanied by an equitable interest . . . – indeed he may not have had them in mind at all – but those in which an equity is asserted which must be made good before an equitable interest can be held to exist. In the latter class of cases the equity is distinct from, because logically antecedent to, the equitable interest . . .

ⁱ (1861) 4 De GF&J, at p 218 [45 ER, at p 1167].

ⁱⁱ (1861) 4 De GF&J 208 [45 ER 1164].

ⁱⁱⁱ (1852) 2 De GM&G 623 [42 ER 1015].

^{iv} (1859) 4 De G&J 78 [45 ER 31].

Comment

(1) Kitto J refers to an equity ‘accompanied by an equitable interest’. How does this apply to cases where the claim is one to set a conveyance aside? In *Latec*, the claim was that what appeared to be an absolute conveyance was in fact a mortgage.

⁵ See pp 291–292.

(2) Further extracts from *Latec*, relating to the effect of equities on purchasers, will be found later.⁶

Cases where the equity does not depend upon an equitable remedy linked to an equitable interest are more controversial. It has sometimes been argued that the availability of any equitable remedy gives rise to an equity which can bind a purchaser, but this argument became untenable after *National Provincial Bank Ltd v Ainsworth*.⁷ Lord Upjohn was quite clear: 'a mere "equity" naked and alone is, in my opinion, incapable of binding successors in title even with notice; it is personal to the parties'. Nevertheless, it remains the case that some rights, of which estoppel probably provides the best example, are commonly described as equities. This may indicate no more than a reluctance to use the more definite language of equitable interests. Can it be argued that equities provide a useful and flexible tool for use in developing proprietary interests?

Extract 1.3.4

Land Registration Act 2002, s 116

116.—It is hereby declared for the avoidance of doubt that, in relation to registered land, . . .

(b) a mere equity,

has effect from the time the equity arises as an interest capable of binding successors in title (subject to the rules about the effect of dispositions on priority).

Extract 1.3.5

Law Commission No 271: Land Registration for the Twenty First Century: A Conveyancing Revolution (footnotes omitted)

5.36 The effect of the Bill is as follows.

(1) It declares for the avoidance of doubt that, in relation to registered land, a mere equity has effect from the time when the equity arises as an interest capable of binding successors in title (subject to the rules about the effect of dispositions on priority). In one sense this is, of course, no more than declaratory of the present law, because it is not disputed that a mere equity is a proprietary right of some kind.

Explanatory Notes, 512. In relation to 'mere equities' the Bill clarifies the present law. A 'mere equity' is difficult to define with any clarity. The term is used to denote a claim to discretionary equitable relief in relation to property, such as a right to set aside a transfer for fraud or undue influence, a right to rectify an instrument for mistake, or a right to seek relief against the forfeiture of a lease after a landlord has peaceably re-entered.

Comment

(1) What is a mere equity (it has no statutory definition)? Is it satisfactory to use this term in legislation when it is 'difficult to define'?

(2) In the light of the material earlier discussed, is it correct to assert that a mere equity was already a proprietary right?

(3) How is s 116 most likely to be interpreted?

⁶ See Extract 9.4.1.

⁷ [1965] AC 1175 at p 1238; see also Extract 18.1.9 below.

Further reading

Baker (1977) 93 LQR 529: The future of equity.

Everton (1976) 40 Conv (NS) 209: 'Equitable interests' and 'equities' – in search of a pattern.

Hargreaves, E (2011) 25 Trust Law International 163: The nature of beneficiaries' rights under trusts.

Harris, J W (1987) 'Legal doctrine and interests in land', in *Oxford Essays in Jurisprudence*, Third Series, eds J M Eekelaar and J Bell, Chapter 8.

Honoré, A M (1961) 'Ownership' in *Oxford Essays in Jurisprudence*, First Series, ed. A G Guest, Chapter 5.

Reich, C A (1964) 73 Yale LJ 733: The new property.

2

Human rights

As we are interested in the impact of human rights principles on property law, this is not an appropriate book in which to provide detailed treatment of these principles. This chapter will include a little of the basic material: cases raising human rights issues in specific property areas will be considered in the relevant chapters.

1. The Convention rights

Extract 2.1.1

Human Rights Act 1998, ss 3, 6; Articles 6, 8; First Protocol, Article 1

3.—(1) So far as it is possible to do so, primary legislation and subordinate legislation must be read and given effect in a way which is compatible with the Convention rights.

6.—(1) It is unlawful for a public authority to act in a way which is incompatible with a Convention right.

(2) Subsection (1) does not apply to an act if—

- (a) as the result of one or more provisions of primary legislation, the authority could not have acted differently; or
- (b) in the case of one or more provisions of, or made under, primary legislation which cannot be read or given effect in a way which is compatible with the Convention rights, the authority was acting so as to give effect to or enforce those provisions.

(3) In this section ‘public authority’ includes—

- (a) a court or tribunal, and
- (b) any person certain of whose functions are functions of a public nature, but does not include either House of Parliament or a person exercising functions in connection with proceedings in Parliament . . .

Article 6 1. In the determination of his civil rights and obligations or of any criminal charge against him, everyone is entitled to a fair and public hearing within a reasonable time by an independent and impartial tribunal established by law.

Article 8 1. Everyone has the right to respect for his private and family life, his home and his correspondence.

2. There shall be no interference by a public authority with the exercise of this right except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others.

First Protocol, Article 1 Every natural or legal person is entitled to the peaceful enjoyment of his possessions. No one shall be deprived of his possessions except in the public interest and subject to the conditions provided for by law and by the general principles of international law.

The preceding provisions shall not, however, in any way impair the right of a State to enforce such laws as it deems necessary to control the use of property in accordance with the general interest or to secure the payment of taxes or other contributions or penalties.

Extract 2.1.2

JA Pye (Oxford) Ltd v United Kingdom (2007) 46 EHHR 1083 (footnotes omitted)

The applicant argued that the rules relating to adverse possession of registered land (whereby ownership may be lost if another person adversely possessed the land for 12 years) contravened Article 1.

EUROPEAN COURT OF HUMAN RIGHTS (GRAND CHAMBER): 43. The Government . . . considered, in the first place, that the matter should be determined by reference to Art 6 of the Convention, and not Art 1 of Protocol No 1. Unlike in previous cases, the Government in this case had not appropriated property to its own use, and had not introduced legislation for the involuntary transfer of private property from one person to another in pursuit of a social policy objective. The only interference with the applicant companies' land came about through the actions of private individuals, the squatters, who obtained adverse possession in 1983–1984. The outcome of the proceedings was dictated by the applicant companies' own inaction. It contended that the application to the present facts of the conventional case law as to the necessity, in principle, for compensation to be paid in respect of deprivations of property confirmed the logic of analysing the case by reference to Art 6: the purpose of a limitation period is to deprive a claimant, at the end of the relevant time period, of any opportunity of enforcing his rights through the courts. That objective would be frustrated if a limitation provision could only be compatible with the Convention if the claimant was provided with compensation against the very person against whom his claim was barred.

45. Under Art 1 of Protocol No 1, the Government considered that the provision was not engaged, because the applicant companies acquired the disputed land subject to the risk of losing it pursuant to the provisions of the 1925 and 1980 Acts. That risk had to be viewed as an incident of their property. . . .

53. In order to be compatible with the general rule set forth in the first sentence of the first paragraph of Art 1, an interference with the right to the peaceful enjoyment of possessions must strike a 'fair balance' between the demands of the general interest of the community and the requirements of the protection of the individual's fundamental rights.

54. A taking of property under the second sentence of the first paragraph of Art 1 without payment of an amount reasonably related to its value will normally constitute a disproportionate interference that cannot be justified under Art 1. The provision does not, however, guarantee a right to full compensation in all circumstances, since legitimate objectives of 'public interest' may call for less than reimbursement of the full market value.

55. In respect of interferences which fall under the second paragraph of Art 1 of Protocol No 1, with its specific reference to '[T]he right of a State to enforce such laws as it deems necessary to control the use of property in accordance with the general interest . . .', there must also exist a reasonable relationship of proportionality between the means employed and the aim sought to be realised. In this respect, States enjoy a wide margin of appreciation with regard both to choosing the means of enforcement and to ascertaining whether the consequences of enforcement are justified in the general interest for the purpose of achieving the object of the law in question.

60. The Court finds nothing in its case law to suggest that the present case should be dealt with only under Art 6 of the Convention, and indeed, given the different content of the two rights, it would be unusual if the Court were to decline to deal with a complaint under one head